ONISMO NKOMPILO
Versus
MASTER OF THE HIGHCOURT N.O
And
OBRAM TRUST COMPANY (PVT) LTD N.O
(Executor, Estate late Oliver Musindo Kompilo DR No.CY170/21)
And
OLIVER MASOMERA N.O
(Executor. Estate late Oliver Musindo Kompilo DR No. CY170/21)
And
OFFER MUSINDO

HIGH COURT OF ZIMBABWE
BACHI MZAWAZI J
CHINHOYI, 13 June/ 9 July 2026

S.C. Chimedza, for the Applicant
No appearance, for the 1st Respondent
B. Maruva, for the 2nd and 3rd Respondents

Civil Opposed Court Application

BACHI MZAWAZI J:

Brief Background

In Brief, the applicant and the fourth respondent are half-brothers. In a duly constituted edict meeting, they were appointed joint executors of their late father's estate, Estate late *Oliver Musindo Kompilo* DR No.CY170/21, by the first respondent. A couple of years later, due to their uncordial relationship defeatist to the smooth and expeditious winding up of the estate, another enquiry was conducted in terms of s116 of the Administration of Estates Act [*Chapter* 6:01]. The beneficiaries and all interested parties then present agreed to have a neutral executor from the Master's list appointed to replace the two siblings. This meant the removal of both co-executors. The Master, the first respondent, removed the two executors. The third respondent who acts through the second respondent a registered legal entity was appointed the replacement executor and was unanimously accepted. He assumed the reins of executorship from then to date**.**

The applicant, through a declarator, is challenging his removal by the first respondent as contrary to s85 of the Administration of Estates Act,[1] therefore *ultra vires* the law and a legal nullity. The first and fourth respondents have not opposed the application. It is the second and third respondents who have opposed the application. Their main objection as borne in their *point in limine* and amplified in their arguments on the merits is that, the applicant ought to have proceeded through review proceedings not a declaration of rights.

Issues

Since the arguments for the preliminary point and on merits have been intermarried, the sole issue for determination is whether or not the applicant should have proceeded by way of review instead of a declaratuer?

Analysis

There is no contestation that in this jurisdiction as founded in the case of *Fischer v Liquidators of the Union Bank* 8 SC 46 at 52, an executor is the only person who is looked upon by the court as the person to represent the estate of the deceased. From the submissions on record, it is clear that the Master's office is a creature of statute. His duties, rights, obligations, and operating parameters are prescribed by the Act that created the office. Whilst the Master can appoint the executors, in terms of the governing Act he has no powers to remove the executor. [2]

I agree with the applicant that s85 provides for removal of the executor by the High Court through a court order. If s85 is read in *pari materia* with s117 of the same Act and as amended then, it is clear that it is the High Court which has been bestowed with the exclusive powers to remove an executor. [3]

The new amended section which repealed and replaced the old s117 of the Administration of Estates Act, makes it succinctly clear that after the Master has conducted an enquiry in terms of s116, he, through his own volition or at the instance of an aggrieved

[1] Administration of Estates Act [Chapter 6:01].
[2] Administration of Estates Act [Chapter 6:01].
[3] Administration of Estates Amendment Act [Chapter 3: 2024]

interested party approaches the High Court through an application for the removal of the recalcitrant executor on grounds stipulated therein. [4]

This new amendment cleared the air and settled the position that approaching the High Court for the removal of an executor is no longer restricted to the Master but extends to an aggrieved interested party. It also settles the common law position that guaranteed the jurisdiction of the High Court in the removal of an executor. The High Court plays an integral oversight role providing the necessary checks and balances. It is a mechanism to ensure transparency, accountability and responsibility given the sensitive nature of deceased estate disputes. It is also a safeguard measure to guard against concentrating both powers of appointing and removal in one authority.

Katirawu v Katirawu & Ors [5] is authority to the legal position that whilst the Master has powers to appoint, it is only the High Court which removes an executor from office on grounds prescribed by the law.[6]

Thus, whilst the position of the law on the removal of executors is very clear, what the applicant is impugning is the decision of the Master. Whether the decision was done outside the scope of the law or not it still remains a decision of the Master.

Section 26 of the High Court Act[7] peremptorily states that, subject to the Act and any other law, the High Court shall have power, jurisdiction and authority to review all proceedings and decisions of all inferior courts of justice, tribunals and administrative authorities within Zimbabwe. (My emphasis).

Section 27 (1) (c) is apposite. It is the review court that can set aside an administrative decision if gross irregularity is proved. It is evident that *Mr Chimedza's* argument goes to the root of the manner the applicant was removed from his post or office as an executor. That removal was an action of the Master. It is subject to review. It is the review court that is statutorily sanctioned to set aside the decision of a subordinate court, a quasi-judicial body, tribunal or administrative functionary.

[4] See note 1above.
[5] HH-58-07.
[6] S117 of Act, [Chapter 3:2024]
[7] Chapter 7:06

The Supreme Court, in *Van Niekerk v the Master of the High Court* 1998 (1) ZLR, 418 at 421 G, made it clear that decisions of the Master are subject to review if there is a grievance. ZIYAMBI JA, in relation to s52 of the Administration of Estates Act, said,

> It seems to me that in terms of s52(9)(i) the applicant had no alternative but to proceed by way of review if she was a' person aggrieved' by the Master's decision. Upon review, it is for the court thereafter to make such an order as it may think fit.

Indeed, a declarator is a legal remedy for the declaration of legal rights and obligations as outlined in s14 of the High Court Act.[8] It is also a viable tool to define the legal position within which the parties exercise their rights. The requisites of this recourse as portrayed in the governing statute have been well explored by the courts. They need no elaboration. See, *Musara v Zinatha* 1992 (1) ZLR 9 (H); *Lupu v Lupu* 2000 (1) ZLR 120 (SC)) *and Logan v Morris NO& Ors* 1990(2) ZLR 65 (SC).

It suffices to conclude that, the applicant has indeed brought before this court a review disguised as a declarator as submitted by *Mr Maruva* for the second and third respondents. The proper course of action is to approach this court by way of review. There is no justification for punitive costs.

Disposition

1. The first respondent as the Master made a decision.
2. Decisions of the Master are subject to review.
3. An application for a declaratory relief is not the appropriate recourse.
4. Costs are granted on the ordinary scale.

Accordingly,

It is ordered that:

1. The application for a declarator is dismissed with costs

Mudimu Law Chambers Applicant's legal practitioners
Zuze Law Chambers for the 2nd and 3rd respondents' legal practitioners

[8] Note 6 above.